



Subject: LAW

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Advanced Constitutional Law

Paper :

Module : Equality : III- articles 17,18



ज्ञान-विज्ञान विमुक्तये

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Component - I (B) Description of Module

Subject Name	Law
Paper Name	Advanced Constitutional Law
Module/ Name/Title	Equality-III: Articles 17, 18
Module Id	12
Pre-requisites	Basic Knowledge of the concept of Untouchability, Civil Rights, Titles and the role of State
Objectives	To understand the basic concepts relating to Untouchability, Civil Rights, class, caste discrimination and abolition of Titles
Keywords	Untouchability, Civil Rights, Class, Caste Discrimination, Titles

Component - II

Module 10: Equality-III: Articles 17, 18



Structure:

1. Introduction
2. Learning Outcome
3. Problem of Untouchability and Article 17 of the Constitution
4. The Untouchability (Offences) Act, 1955 and the Protection of Civil Rights Act, 1955
5. Judicial Attitude
6. Abolition of Titles

1. Introduction

The caste based Indian society has defined a particular code of conduct to persons belonging to every caste. It also sanctified the conduct of persons belonging to a particular caste and their relation to a person or group of persons belonging to upper castes and lower caste with reference to their own caste.¹ The disadvantaged sections of the Indian society i.e. Untouchables are the victims of Hindu caste system. They are denied basic human rights and even the status of being a human being.² In Hindu society, the most powerful instrument in determining a person's dignity is his caste. Caste system is the result of the Hindu belief of 'Reincarnation and Karma'. The Hindu religious code of conduct divides the entire society into four major castes i.e. Brahmans (the Priestly Class), Kshatriyas (the Warrior Class), Vaishyas (the Trading Class), Sudras (the Servants). The four castes eventually developed into a social mosaic of 3000 sub-castes, with the Untouchables at the bottom of the list and out of the list in particular. Such rigid caste system is not found anywhere in the world except in India. If a person is born into a caste, his status is predetermined and immutable. Birth decides one's status and this cannot be altered even by the potential and skill possessed by the individual. Similarly, the caste in which a person is born predetermines the vocation which that person will pursue. Thus, birth decides the

¹ B.Karthik Navayan, National Seminar on Ambedkar's Contribution for upliftment of the Disadvantaged, https://www.academia.edu/820268/Dr_Ambedkar_Contribution_in_Law_and_Justice_for_the_upliftment_of_the_disadvantaged, accessed on July 21, 2014 at 10.00 pm.

² Ibid.



occupation of the person. This caste system discriminates the human persons and stratifies them into different groups.³ Many social reformers have worked against the caste system and untouchability.⁴ Ambedkar provided constitutional guarantees and protections for a wide range of civil liberties for individual citizens, including freedom of religion, the abolition of untouchability and the outlawing of all forms of discrimination. India's lawmakers hoped to eradicate the socio-economic inequalities and lack of opportunities for India's depressed classes through this measure, which had been originally envisioned as temporary on a need basis.⁵

2. Learning Outcome

- 2.1 Relation between the caste based Indian society and problem of untouchability
- 2.2 Legislative and Judicial efforts to deal with this problem.

3. Problem of Untouchability and Article 17 of the Constitution

Untouchability is a direct product of the caste system. It is not merely the inability to touch a human being of a certain caste or sub-caste. It is an attitude on the part of a whole group of people that relates to a deeper psychological process of thought and belief, invisible to the naked eye, translated into various physical acts and behaviours, norms and practices.⁶ Article 17 abolished 'Untouchability' and forbids its practice in any form. It further declares that 'the enforcement of any disability arising out of Untouchability shall be an offence punishable in accordance with law.'⁷ The subject matter of this Article is not untouchability in its literal or grammatical sense but the practice as it has developed historically in India. Thus, it was a product of the Hindu Caste System, according to which a particular section amongst the Hindus had been looked down as Untouchable by the other sections of that society.⁸ It would not be wrong to say, therefore that the provisions of the Constitution granting equal rights to the Scheduled Castes embodied the dreams of Ambedkar, who without doubt was the greatest

³ *Ibid.*

⁴ *Ibid.*

⁵ *Ibid.*

⁶ <http://navsarjan.org/navsarjan/dalits/WhatIsUntouchability>, accessed on August 4, 2014 at 10.07 pm.

⁷ M P Jain, *Indian Constitutional Law*, 1067 (Lexis Nexis Butterworths Wadhwa 2011).

⁸ *Ibid.*



emancipators of the Untouchables in modern India. He strove for the upliftment of the Scheduled Castes, but concentrated on different areas and their work was complementary and supplementary to each other. Ambedkar worked primarily amongst the Scheduled Castes and fought for their political rights to secure for them social and economic justice.⁹

4. The Untouchability (Offences) Act, 1955 and the Protection of Civil Rights Act, 1955

Article 17 of the Constitution had abolished untouchability as well as its practice in any form. Untouchability means the practices evolved as social restrictions in sharing food, access to public places, offering prayers and performing religious services, entry in temple and other public places and denial of access to drinking water sources, etc. The Parliament had enacted the Untouchability (Offences) Act, 1955 in order to implement the mandate of Article 17. This Act contained a significant provision that where any of the forbidden practices “is committed in relation to a member of a Scheduled Caste” the Court shall presume, unless the contrary is proved, that such act was committed on the ground of “Untouchability”. This implied that the burden of the proof lies on the accused and not on the prosecution. After its commencement, there was a general feeling of dissatisfaction as the legislation failed to serve the purpose for which it was enacted. The punishments awarded under the Act were not adequate. Therefore, a Committee was appointed by the Government of India in April 1965 under the Chairmanship of Shri Ilaya Perumal to study, inter-alia, problems of Untouchability vis-a-vis the working of the Untouchability (Offences) Act, 1955 and to suggest changes therein. The Committee’s report was submitted in 1969.¹⁰ In 1976, the Parliament amended the Untouchability (offences) Act 1955 which was renamed as the Protection of Civil Rights Act, 1955.

The Protection of Civil Rights Act, 1955		
Section	Title	Provision

⁹ Tofan Bem, Issue of Untouchability in Modern India, http://orissa.gov.in/e-magazine/Orissareview/April2006/engpdf/Issue_of_untouchability.pdf, accessed on August 4, 2014 at 10.11 pm.

¹⁰ <http://dalitmarch.org/untouchability-offences-act-1955.html>, accessed on August 2, 2014 at 8.00 pm.



Section 2(a)	Definition of Civil Right	The expression 'Civil Right' has been defined as any right accruing to a person by reason of abolition of 'Untouchability'.
	Non-Compoundable	All offences relating to the practice of 'Untouchability' have been made non compoundable.
Section 7	Punishment	The imposition of religious disabilities on a Scheduled Caste person is a crime punishable with fine, which shall not be less than one hundred rupees and not more than 500 rupees or imprisonment for a term not less than one month and not more than six months.
Section 15	Cognizable Offence	Every offence under the Act is a cognizable offence (i.e. a police officer can arrest the accused person without warrant).
Section 15	Summary Trial	Every offence, except where it is punishable with imprisonment for a minimum term exceeding three months, may be tried summarily by a first class Judicial Magistrate. (For summary trials procedure is simply and so the case can be disposed of expeditiously.)
Section 10	Duty of Public Servant	It has been declared a duty of the public servants to investigate offences relating to 'Untouchability'. It is further provided that a public servant, who willfully neglects the investigation of any offence punishable under this Act, shall be deemed to be an abettor. He shall be deemed to have abetted the offence punishable under the Act.
Section 12	Burden of Proof	In criminal cases normally the accused is believed to be innocent until proved guilty, and the burden of proving the guilt is on the prosecution. However, in "untouchability" offence cases, the burden of proof of innocence lies on the accused. In other words, when the victim is a member of a Scheduled Caste, the commission of a forbidden act shall be <i>prima facie</i> presumed to have been committed on the ground of "untouchability."
	Measure to ensure enforcement	i) The State Government must take measures to make the rights available to the persons subject to any disability. ii) Such measures must include: - Provision of adequate facilities including free Legal Aid to avail oneself of such rights. - Setting up of special courts. - Appointment of special officers for initiating or exercising supervision over prosecution. - Setting up Committees to assist the State Government in formulating or implementing such measures. - Provision for periodic survey of the working of Act. - Identifying "untouchability prone areas" and adopting relevant measures to eradicate such practices.
Section	Places of Worship	Privately owned places of worship have been brought



2(d)		within the purview of the Act. Preaching of Untouchability or its justification has been made punishable.
Section 10A	Collective Fines	The State Governments are empowered to imposed collective fines on the inhabitants of an area involved in or abetting the commission of offences under the Act. Finally, the Act seeks to set up a machinery for better administration and enforcement of its provisions.

5. Judicial Attitude

Name of the case	Facts	judgment
<i>Peoples Union for Democratic Rights v Union of India, AIR 1982 SC 1473.</i>	It is a writ petition brought by way of public interest litigation in order to ensure observance of the provisions of various labour laws in relation to workmen employed in the construction work of various projects connected with the Asian Games. The basis of this public interest litigation was the letter written on the basis of a report made by a team of three social scientists who were commissioned by Peoples Union for Democratic Rights for the purpose of investigating and inquiring into the conditions under which the workmen engaged in the various Asiad Projects were working.	Whenever a fundamental right contained in Article 17, 23 or 24 was being violated by a private individual, it would be the constitutional obligation of the State to take necessary steps to interdict such violation and ensure that such person should respect that right. The State is not absolved from its constitutional obligation even if the aggrieved person could enforce his invaded fundamental right.
<i>State of Karnataka v Appa Balu Ingale, AIR 1993 SC 1126.</i>	The respondent was convicted by two lower courts on the charge of restraining by show of force, the complainants from taking water from a newly dug up bore well on the ground and that there were untouchable. The High Court, however, acquitted the accused disbelieving the evidence deposed by the four witnesses who all were <i>Harijans</i> . The Supreme Court in appeal upheld the conclusions of the lower courts and held that the prosecution evidence did not suffer from any infirmity and was sufficient to prove the charge beyond doubt.	The Supreme Court expressed its concern over the continuance of the practice of untouchability. It is being practiced with impunity irrespective of the fact of its abrogation. It is imperative to deal with the problem from sociological and constitutional perspectives and also from the perspectives of criminal jurisprudence. The court further observed that the evil of untouchability was not founded on mens-rea and therefore, the court should adopt a psychological approach in appreciating the evidence and should not be influenced by deep seated prejudices or



		predilections covertly found in other walks of life about this evil.
State of MP v Ram Kishna Balothia, AIR 1995 SC 1198.	The constitutional validity of certain provisions of the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989. Section 18 of this Act excludes the operation of Section 438 of the Criminal Procedure Code, 1973 which confers discretion on the High Court and Court of Sessions to grant bail in case of non-bailable offences.	To prevent the commission of offences or atrocities against the members of the Scheduled Castes and the Scheduled Tribes and for providing the special courts for the trial of such offences and for the relief and rehabilitation of the victims of such offences, Parliament enacted the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act 1989. Section 18 of the Act excludes the application of Section 438 of the Cr. P.C. 1973 to cases arising under the Act. The Supreme Court upheld the validity of section 18 of the Act in the present case.
State of Kerala v Chandramohan, AIR 2004 SC 1672	Whether the person ceases to be a member of scheduled tribe by mere change of religion or not.	As regards atrocities committed against a Hindu SC/ST who had converted to another religion laying down the broad proposition of law, the Supreme Court ruled that a converted persons would not cease to be a member of the SC/ST community, if he was following the customs, rituals, customary laws of succession, inheritance, marriage and other traits required to be followed by the members of that community.
State of UP v Ram Sanjivan, AIR 2010 SC 1738.		It is absolutely imperative to abolish the caste system as expeditiously as possible for the smooth functioning of Democracy based on the principle of Rule of Law.

6. Abolition of Titles

Clause (1) of Article 18 abolishes titles. It prohibits the State from conferring titles, except military or academic distinctions, on any person whether a citizen or a non citizen. Clause (2) of Article 18 prohibits a citizen of India from accepting any title from a foreign State. Clause (3) prohibits a person, not being a citizen of India, but



holding any office or trust under the State, from accepting any title from any foreign State without the consent of the President. Clause (4) further prohibits such a person from accepting any present, emolument or office of any kind from or under any foreign State, without the consent of the President. Clause (3) and (4) has been added with a view that a person not being a citizen of India should remain loyal to the State and should not commit the breach of trust reposed in him.

Article 18 does not provide any penalty for its contravention. It was observed by Dr. Ambedkar, the Chairman of the Drafting Committee of the Constituent Assembly that the Parliament would have constitutional power to make a law prescribing the penal consequences in case of violation of the provisions contained in Article 18. One of the penalties might be loss of the right of citizenship by that individual. Article 18 does not prohibit the State from conferring military or academic distinctions like Bharat Ratna, Padam Vibhushan, Padam Shri etc. They are conferred in recognition of good work done by citizens in various fields.

In *Balaji Raghavan v Union of India*,¹¹ the Supreme Court discussed the issue that whether the Awards, Bharat Ratna, Padma Vibhushan, Padma Bhushan and Padma Shri known as "The National Awards") are "Titles" within the meaning of Article 18(1) of the Constitution of India. It was held that National Awards do not amount to be titles within the meaning of Article 18 (1). They should however not be used as suffixes or prefixes.¹² The theory of equality does not mandate that merit should not be recognized. Article 51A of the Constitution speaks of the fundamental duties of every citizen of India. In this context, we may refer to the various clauses of Article 51A and specifically clause (j) which exhorts every citizen "to strive towards excellence in all spheres of individual and collective activity, so that the nation constantly rises to higher levels of endeavour and achievement." It is, therefore, necessary that there should be a system of awards and decorations to recognize excellence in the performance of these duties.¹³ Thus, the court directed that a high level committee should be appointed to look into the existing guidelines for conferring these National Awards.

¹¹ AIR 1996 SC 770.

¹² *Id.*, at 778.

¹³ *Id.*, at 777.



In the end, it is submitted that giving of such awards is also permissible under the Constitution. The object is to establish an egalitarian society woven into the ideal of social justice enshrined in the Preamble to the Constitution.

7. Summary

- Indian Society is mainly divided into four castes i.e. Brahmins (the Priestly Class), Kshatriyas (the Warrior Class), Vaishyas (the Trading Class), Sudras (the Servants).
- Untouchability is a direct product of the caste system.
- Article 17 abolished 'Untouchability' and forbids its practice in any form.
- The Parliament amended the Untouchability (offences) Act 1955 which was renamed as the Protection of Civil Rights Act, 1955.
- Article 18 prohibits the State from conferring titles on any person whether a citizen or a non citizen.
- It does not prohibit the State from conferring military or academic distinctions like Bharat Ratna, Padam Vibhushan, Padam Shri etc.
